Political Behavior (2025) 47:1735–1780
https://doi.org/10.1007/s11109-025-10010-0

ORIGINAL PAPER

Labor vs. Big Business: Interest Groups, Cue-Taking, and Voting Behavior

Daniel R. Daneri[1]

Accepted: 28 January 2025 / Published online: 3 April 2025

Abstract

How do individuals interpret interest group cues to make informed voting decisions that are aligned with their partisan identities and ideologies? In the 2020 election cycle, Californians voted on a ballot proposition that concerned the employment status of gig economy workers such as Uber and Lyft drivers. In a manner uncharacteristic of most policy issues, votes for and against the measure did not neatly align with partisan identities. I conduct a content analysis of newspaper coverage and paid social media advertising and find that voters received potentially imbalanced exposure that favored arguments by app-based companies and their allies. I theorize that voters were persuadable due to low attitude crystallization and a new information environment with respect to independent contractor status as a policy issue. To test this, I conduct an experiment among self-identifying Democrats in which I expose them to a series of cue-taking treatments from businesses and labor unions regarding legislation on an independent contractor status policy (low attitude crystallization) or a paid family/medical leave program (high attitude crystallization). The results support my theory and suggest that, despite a half-century of decline, labor unions' endorsements continue to serve as a compass to guide individual voter decision-making towards progressive positions.

Keywords American politics · Interest groups · Behavior · Labor · Business · Voting · Labor unions · Direct democracy · Initiative · Referendum

✉ Daniel R. Daneri
drdaneri@syr.edu

[1] Department of Political Science, Syracuse University, 100F Eggers Hall, Syracuse, NY 13244, USA

Introduction

In the 2020 election cycle, Californians faced a consequential but technically obscure ballot choice that concerned the employment status of gig economy workers such as Uber and Lyft drivers. In sum, Proposition 22 would determine whether these gig economy workers would be classified as employees or independent contractors; in the latter case, they would not have collective bargaining rights or many of the protections and benefits afforded “employees” by federal and state labor laws. Business groups, including direct stakeholder companies such as Uber, rallied to pass the measure to keep gig workers’ classification as independent contractors and poured over $200 million into an ultimately successful campaign (Heilweil 2020). Unlike most policy issues, the issue didn’t polarize along familiar partisan lines; Democrats, for instance, were mixed on the issue with just 52% opposing the measure according to polls conducted a week before the election. Building on scholarship on heuristics for voter decision-making, I ask how individuals in cases such as this interpret interest group cues to make more informed decisions that are aligned with their interests and ideologies.

To answer this question, I conduct a pre-registered experiment among Democrats and Democratically leaning independents in which I expose respondents to a series of cue-taking treatments from labor and business groups. I theorize that attitudes on the independent contractor policy were poorly crystallized and highly malleable due to the novelty of the issue and its inherent complexity. To test this theory, I randomize subjects into treatments regarding state-level legislation on independent contractor status (low attitude crystallization) or a paid family/medical leave program (high attitude crystallization) modeled after a ballot proposition that passed in Colorado in 2020. Respondents are then randomized into conditions that either expose them to endorsements from labor unions or businesses/business associations and asked again to state their support or opposition. The results strongly suggest that, despite a half-century of decline, labor union endorsements continue to serve as compasses to guide individual voter decision-making towards progressive positions. Over half of respondents who initially support the business-backed conservative position switch to the progressive position after viewing the union endorsements. Moreover, a statistically significant percentage of respondents who initially support the conservative position also switch when they learn that their position is aligned with the business groups.

This study has important implications for the role that unions play in helping individuals realize their economic interests. Scholars of inequality have documented how businesses’ resource advantage translates into disproportionate influence in the policymaking process compared to other interest groups (Hertel-Fernandez 2019; Bartels 2008; Gilens and Page 2014). The results suggest that the major hurdle in countering business advocacy is not the amenability of individual citizens to arguments from progressive interest groups like unions—it is perhaps the relative lack of exposure to those arguments.

In the next section, I review the literature on labor and public opinion. Thereafter, I turn to the background on the motivating case study for the experiment, Proposition 22 in California, and present the results of the content analyses of media coverage and advertising on the issue. I then replicate those analyses for Proposition 118, the paid leave initiative in Colorado. Finally, I introduce and discuss my experiment to causally identify the effect of interest group messages on attitudes towards employment policies.

Cue-Taking, Direct Democracy, and Organized Labor

This study builds on a long line of scholarship on voting behavior and direct democracy. Initiatives and referenda emerged at the turn of the 20^{th} century as a response to rising inequality and the disproportionate power of concentrated economic interests (Cronin 1989). Many previous empirical studies have attempted to measure the impact of wealthy interests in swaying public opinion, finding mixed results. While Bowler and Donovan (1998) and Gerber (1999) found little support for the hypothesis that wealthy interests wield disproportionate influence, several early scholars found support for a more limited claim that money is more pivotal in opposition campaigns than it is in supporting campaigns (Lowenstein 1982; Magleby 1984; Owens and Wade 1986). Nevertheless, the debate is far from settled as more recent scholarship has found support for the impact of financial resources in a range of settings. Stratmann (2006), for instance, found that the number of television advertisements for and against ballot propositions in California from 2000 to 2004 significantly affected their likelihood of passage. In a randomized field experiment, Rogers and Middleton (2015) found that campaign spending on mailers for two initiatives (one in opposition and one in support) was decisive in determining the outcomes. Garrett and Geber (2001) argued that while an advantage of financial resources may be limited in the campaign stage, it is potentially much greater in the qualification stage during which actors must navigate government bureaucracy and gather signatures from the public. The advent of paid professional signature-gathering operations has only increased this potential advantage for well-resourced actors (Smith 1998).

While the precise role of money in direct democracy remains contested, the literature more clearly identifies partisanship as the most consistent predictor of voting behavior (Smith and Tolbert 2007). Early research suggested that the lack of partisan labels on initiatives would make these elections less predictable along partisan lines, but Branton (2003) found that voters use a range of cues, from candidate endorsements to media coverage of campaigns in other states, to align their vote choice with their partisan identities. Interest group cues may be pivotal in these contexts, as voters rely on stereotypes that associate certain groups with particular parties (Nicholson 2011; Nicholson and Segura 2012). For example, Ahler and Sood (2018) found that individuals across the partisan spectrum overestimate the extent to which Democrats are members of unions and Republicans are wealthy.

The effects of cue-taking may vary as a function of the firmness of individuals' prior attitudes. Research on attitude crystallization suggests that individuals are most subject to persuasion for issues on which they have less firm beliefs and/or understandings (Zaller 1990; Sears and Valentino 1997; Tesler 2015). Moreover, Nicholson (2011) found that when individuals are more informed on a topic, source cues such as interest group cues are less persuasive. This study probes these concepts by testing cue-taking on two policy issues associated with different levels of attitude crystallization: independent contractor classification and paid leave for family and/or medical reasons. While data suggests that most Democrats are strongly in support of paid leave (Horowitz 2017), Proposition 22 had all the trappings of an issue for which attitudes are uncrystallized–it is new to the agenda, technically complicated, and the partisan alignments were unclear.

Lupia (1994) conducted exit polls with ordinary voters in California to see whether knowing the positions of relevant interest groups such as consumer groups and insurance companies could substitute for encyclopedic information about technically complicated insurance reform propositions. He found support for the notion that knowing the position of an interest group can serve as a heuristic that allows voters to make decisions as though they were well informed. Many subsequent studies have confirmed the existence of this kind of heuristic decision-making as it relates to political parties (Goren et al. 2009), party elites (Nicholson 2012), and social identities such as gender and race (Matson and Fine 2006; McDermott 1998). This study focuses particularly on the role of cues from labor unions. In a 1987 review of the empirical data on Americans' attitudes toward unions, Lipset and Schneider (1987) found that most citizens in the mid-to-late 20th century believed that unions were too powerful and that union leaders "have used their union positions to benefit themselves." Many survey respondents in this period attributed partial responsibility for inflation and economic stagnation to labor unions. However, Gallup data from the last few decades consistently shows that most Americans (71% in 2022) have a generally favorable view of labor unions. Democrats are especially likely to support labor unions—according to a 2021 study by PEW, 74% of Democrats agree that "labor unions have a positive effect on the way things are going in the country" compared to 34% of Republicans. For self-identifying Democrats, cues from labor unions could serve as proxies for the Democratic or progressive position. Labor unions and the Democratic party have been in a stable alliance since at least the New Deal (Dark 1999; Lichtenstein 2013). Labor unions consistently support Democratic candidates through voter turnout efforts, paid media, campaign donations, and lobbying activity (Burns et al. 2000; Ahlquist and Levi 2013). At the individual level, union members themselves tend to skew Democratic (Rosenfeld 2014). Frymer and Grumbach (2021) found that joining a labor union is linked to lower racial resentment among white workers; they also provided cross-sectional evidence that union membership is associated with greater support for policies that benefit African-Americans.

Many scholars have noted the importance of labor unions in aggregating and promoting the interests of working-class individuals (Ahlquist 2017; McCarty and Jonas Pontusson 2011; Hacker and Pierson 2010). MacDonald (2019) has shown that in American states where unionization is higher, greater levels of income inequality lead to greater support for welfare spending. However, the influence of unions on attitudes is likely to be heterogeneous across different subsets of the population, especially with respect to members versus nonmembers (Ahlquist 2017). Kim and Margalit (2017), for instance, found that when the United Auto Workers reversed their support of a US-Korea free trade deal, union members followed suit whereas nonmembers in the auto industry did not change their opinions.

While labor unions are associated with the Democratic Party, businesses—especially large businesses and their federated lobbying associations such as the National Association of Manufacturers and the U.S. Chamber of Commerce—have long been associated with the Republican party (Charnock 2020; Hertel-Fernandez 2018). My design tests these partisan associations by randomizing exposure to either union cues or business cues, allowing us to measure the extent to which these cues cause individuals to switch their initial policy positions.

Aside from bodies of work on racialized framings of economic policies (Mendelberg 2008; Gilens 2009; Jardina 2019) and the populist backlash against globalization (Walter 2021; Mutz 2018; Cramer 2016; Mansfield and Mutz 2009), recent work in political science has little to say about how workers come to understand and formulate their subjective economic interests (but see Johnston et al. 2017 for an identity-based theory). While most behavioral work in the field takes partisan identity as the dominant explanatory starting point for individuals' economic attitudes, I demonstrate here that even Democrats take conservative positions absent cues from unions. I argue that cues from unions therefore serve an essential role in helping working Americans understand and advocate for their economic interests. These messages may help counterbalance the participation of business groups which generally wield outsize influence in the political process (Gilens and Page 2014). Hertel-Fernandez (2018), for instance, found that many companies go as far as persuading their own employees of their preferred policy positions by providing endorsements, voter guides, and political education in the form of free civics courses that emphasize the virtues of the free market.

In recent years, prominent progressive candidates such as Bernie Sanders and Elizabeth Warren have pushed social democratic forms of regulating work to the top of the policy agenda. Proposals such as more robust employment contracts, childcare programs, and paid family/sick leave, have enlivened America's economic discourse and pose many questions for scholars. For instance, what role do interest groups such as unions and business groups play in shaping attitudes on new policy proposals? Given the technical nature of many of these programs, how do groups seize on the opportunity to distort or misconstrue information?

The Campaigns for and Against Prop. 22

Proposition 22 marked a watershed moment in California politics. With a combined spending among supporters and opponents of $224 million, it was the most expensive ballot initiative campaign in the state's history. Uber, Lyft, Instacart, DoorDash, and Postmates banded together to spend a combined total of $205 million supporting the proposition. In comparison, the "No on 22" campaign, which was funded primarily by labor unions, raised just $18.9 million to oppose the measure. The policy at stake was also unusually technical as it concerned a relatively obscure legal classification regarding workers' statuses as employees or independent contractors. In short, independent contractors occupy a grey area in American employment law. Unless states codify rules that stipulate otherwise, the power to label workers as employees or as independent contractors lies entirely with employers. The National Labor Relations Act explicitly distinguishes between independent contractors and employees, providing only the latter with the right to collectively bargain and to band together to improve working conditions. Independent contractors are also excluded from state and federal employment protections including minimum wage and overtime laws, workers' compensation, unemployment insurance, and a wide range of health and safety regulations. While most American workers are employees, the number of independent contractors has been rising since at least 2001 (Lim 2019). In 2018/2019, independent contractors represented 14.8% of the workforce (Abraham et al. 2024). While businesses taking advantage of independent contractor status argue that it is a way to create flexible positions for part-time workers, critics allege that it is better described as a legal loophole that exempts companies from federal and state employment/labor laws (Gould and William 2022).

The story of how a policy regarding independent contractor status made it on the ballot begins in April of 2018 when the California Supreme Court ruled in favor of applying a new legal standard for classifying same-day delivery drivers as employees. In short, the "ABC test" considers workers employees unless the employer can satisfy three factors: the work is done without the direction or control of the employer, the work is performed outside the usual course of the employer's business, and the work is done by someone with their own, independent trade, occupation, profession, or business of the same nature as the performed work. Because the ruling only applied to wage provisions for California workers (and not, for instance, employee benefits such as health insurance), a coalition of Democratic legislators in 2019 led an effort to extend the legal standard to apply to all benefits and protections afforded to regular employees. Democratic Governor Gavin Newsom signed Assembly Bill 5 in September of that year and faced immediate criticism from various factions among the business community including music industry employers and media companies that rely on freelance journalists and production workers; but none were more vocal than app-based gig economy companies such as Uber, Lyft, DoorDash and Postmates.

By the time the law took effect in January 2020, the gig economy companies had already organized to repeal the law via ballot initiative. Meanwhile, they ignored the law altogether, arguing that it would upend their business model and force them to leave the state. Lawsuits abounded as the state attorney general, along with the city attorneys of Los Angeles, San Francisco, and San Diego asked a state judge to issue an injunction requiring the companies to immediately comply. Rather than reclassify their workers, the companies held out and staked their hopes on an affirmative vote for Proposition 22, which appeared on the ballot in November of that year. The ballot issue essentially carved out an exception from the ABC test for "app-based delivery and transportation companies" and instead provided drivers with alternative, albeit minimal, benefits—a health insurance stipend for those who work more than 15 hours a week and a guarantee of 120% of the local minimum wage, excluding the time drivers spend waiting for clients (which accounts for a substantial portion of drivers' overall work time according to the proposition's progressive opponents). The proposition also "prohibits workplace discrimination"[1] and requires that companies develop sexual harassment policies[2].

Knowing none of the details, a voter might see Proposition 22 as a reasonable compromise given the provisions regarding benefits, wages, and workplace discrimination. According to progressive interest groups in California, however, the bill was decidedly anti-worker and amounted to little more than an attempt by a few powerful companies to carve themselves out of state employment law in the pursuit of higher profits. What matters for our purposes is, what did the voters know? What information were they exposed to and to what extent were they able to understand how a yes or a no vote might map on to their interests or traditional partisan/ideological divisions?

To identify the main arguments and endorsements during the campaign, I conducted a hand-coded content analysis (see appendix A for details) of the three largest newspapers in California measured by combined online visitors and print circulation: Los Angeles Times, The San Francisco Chronicle and the San Diego Union-Tribune. Table 1 displays reported arguments and endorsement along with the percentage of articles in which they were mentioned. Across the 173 articles published from January 1, 2020 until election day, the most cited proponents of the bill were app-based

Table 1 Newspaper coverage of arguments and endorsements for/against independent contractor law

Pro arguments	Pro supporters	Anti arguments	Anti supporters
Flexibility/independence (56%)	App-based companies (82%)	Poor benefits and/or protections (57%)	Labor unions/federations (36%)
Loss of services/Company leaving state (23%)	Drivers (19%)	Low wages (20%)	Drivers (19%)
Loss of jobs (19%)	Republicans (5%)	Corporate greed (10%)	Politicians, no party label (17%)
Costs for consumers (19%)	Members of both parties (2%)	Misclassification (5%)	Democrats (16%)
New benefits (12%)	Columnist/editorial (4%)		Academics (7%)
	Politicians, no party label (2%)		Columnist/editorial (6%)
	Chamber of Commerce (1%)		
	Democrats (<1%)		

Arguments mentioned in fewer than 5% of articles omitted; Joe Biden, Kamala Harris, and Bernie Sanders coded as Democrats when affiliation is omitted. All numbers rounded to the nearest percentage point

[1] Workplace discrimination is prohibited by federal laws such as the Civil Rights Act and the National Labor Relations Act which extend to protected statuses such as age, race, and gender, but many of these protections only extend to "employees."

[2] These provisions may have been an attempt to obscure the central content of the bill. Moreover, the language may make it harder to file sexual harassment claims by reducing the time employees have to file a claim. Critics also contend that there are no enforcement mechanisms for any of its provisions and no protections against third-party harassment by passengers (for additional critiques, see National Employment Law Project 2020).

companies and drivers for app-based companies. Some articles cited support from elected officials, but there was variation in partisan labels attached to these officials-most were Republicans, but some articles did not attribute partisan labels (the biggest political figures in California at the time, Governor Gavin Newsom and Donald Trump, both remained silent on the issue). On the other hand, the most cited opponents of the bill were also drivers of app-based companies and labor unions/labor advocacy groups.

To supplement this information, I reviewed all paid text and video advertising content on Facebook and/or Instagram regarding Proposition 22 posted from January 1, 2020 through election day. I coded the content of a random sample of one third of the roughly 2,000 ads posted in 2020 through election day to examine arguments and identify partisan signals (see appendix A for more details on this analysis). Partisan attributions/endorsements were virtually absent from advertisements from proponents while 41% of opponents' advertisements included an endorsement from either a Democratic candidate such as Joe Biden or Kamala Harris, or the California Democratic Party. In total, ads in support of Proposition 22 were circulated to the tune of 391,500,000 - 469,798,434 impressions for a total of $9,396,000 - $10,960,434 in ad expenditures.[3] By comparison, ads for the opposition totaled 87,750,000 - 105,299,649 impressions for a total expenditure of $2,106,000 - $2,456,649, less than a quarter of what the support campaign spent.

The most frequent supporting arguments (see Table 2) emphasized the need for independence or flexibility for drivers to choose their own schedules, the potential loss of jobs if the proposition didn't pass and the new driver benefits the law would provide. In a typical ad published by the Yes on 22 committee, the arguments centered on "three basic things": first, that the proposition would "protect independent jobs" and drivers' flexibility, second, providing new healthcare benefits and an earnings guarantee, and third, implementing "new safety protections for drivers and the public." About a quarter of the ads also conveyed the notion that the app-based companies would leave the state altogether as the proposition would threaten the viability of the business. Some ads made this argument explicitly-one video, which was identical to a major television spot that received attention in the newspaper content analysis, claimed that if the proposition did not pass, "rideshare and delivery could be

Table 2 Arguments for and against Prop. 22 in Facebook advertisements

Arguments for	Arguments against
Flexibility/independence (65%)	Corporate greed (67%)
Loss of jobs (38%)	Poor benefits and/or protections (64%)
New benefits (36%)	Low wages (11%)
Most drivers support it (30%)	
Loss of services/Company leaving state (23%)	
Driver testimonial (52%)	Driver testimonial (3%)

Arguments mentioned in fewer than 5% of ads omitted

[3] Facebook only reports data on impressions and expenditures as ranges.

forced to shut down in California." That ad cited research from a firm called Berkeley Research Group. No partisan content was included in the ads paid for by Yes on 22, but the rhetoric of these messages had a notably progressive flavor (e.g., several ads claimed support from "social justice advocates"). Appeals that included sympathetic drivers of marginalized identities abounded (e.g., single mothers and people of color who depend on the work), as did messages that emphasized the importance of maintaining app-based services to those in need during the COVID-19 pandemic.

The advertisements from the opposition were comparatively far fewer in number and reach. The messages focused on the corporate greed of the app-based companies and lack of benefits and employee protections drivers receive as independent contractors-"Greedy billion-dollar app companies like Uber, Lyft, DoorDash, Instacart, and Postmates are bankrolling Prop 22 to the tune of $180 million dollars for one reason only: to create their own special exemption in order to boost their profits by permanently denying drivers a living wage, workplace protections and benefits." No ads explicitly claimed that most drivers opposed the measure and just 3% of ads included a driver testimonial.

What was a voter to make all of this? The record of stated opponents and proponents make it likely that any single voter was exposed to a mix of potentially contradictory information that would make cue-taking a difficult heuristic for ideologically informed decision-making. Voters are at once being told that the biggest proponents of the bill are the drivers, who also happen to be among the biggest opponents. Labor unions come out consistently for the opposition, but only a quarter of articles mentioned labor unions at all, and unions make little of an appearance in online ads. While the overall partisan slant of the organizations affiliated with the opposition suggests a link to the Democratic Party, the messages from the Yes on 22 campaign often struck a progressive tone and thus many voters were likely left at loss for how to vote along party lines. It is probable that many voters had no interest group or partisan cues whatsoever—especially those who were not exposed to some of the more even-handed news coverage and instead relied solely on the advertisements from the well-publicized Yes on 22 campaign (which were usually devoid of endorsements from organizations or public figures). Taken together, the insights from the content analysis suggest voters received mixed signals at best and, at worst, a biased dose of the Yes on 22 arguments. For voters whose only source of information was unsolicited advertisements, their information was distorted heavily in favor of the proponents. After all, the Yes on 22 campaign outspent the opposition by a factor of over ten to one and the results of the Facebook ad analysis suggests a heavy dose of one-sided information.

In the end, 58.6% of voters voted yes on Proposition 22. A poll conducted by the Berkeley Institute of Governmental Studies (IGS) from October 16–23 (about ten to eighteen days before election day on November 3) with 6,686 registered California voters gives us the best available insights into how the votes split by relevant political identities (see Table 3). Across the four issues that respondents were asked about, Proposition 22 stands out for failing to neatly map on to traditional partisan cleavages. A ballot issue concerning property tax reform, on the other hand, split along familiar partisan lines with 70% of Democrats in support and 85% of Republicans in opposition. For Proposition 22, the partisan divide was far less stark. Although a large

Table 3 Preferences for Prop. 22 among likely voters

	Yes	No	Undecided
Democrat	34%	52%	14%
Republican	71%	21%	8%
Independent	44%	45%	11%
Union household	40%	51%	9%
Non-union household	47%	41%	12%
White	47%	42%	11%
Black	53%	33%	14%
Latino	43%	44%	13%
Asian/Pacific Islander	45%	45%	10%
Male	47%	44%	9%
Female	45%	41%	14%

Poll conducted by Berkeley Institute of Governmental Studies

majority of Republicans supported Proposition 22, only 52% of Democrats opposed it and a relatively high percentage of Democrats reported that they were undecided. Even more surprising, union households were relatively divided on the issue, with 51% opposing and 40% supporting, even as labor unions were virtually uniform in their opposition to the bill. In Appendix C, I report the results of a logistic regression using the IGS sample (n=6,024) that support the basic intuition gleaned from Table 3. While I find significant negative correlations between support and liberal ideology, Democratic partisan identity, and union membership, there is much more intra-party and intra-ideological variation than we would traditionally expect for a political issue. I find positive correlations between support and a dummy variable for African-American and no significant correlation with gender.

The motivating argument for the experiment that follows is that this ambivalence may be explained by a lack of clear cues that were available to voters in the 2020 elections in California. With so many competing and contradictory messages regarding where workers, political parties, and interest groups stood on the issues, many voters were likely misinformed regarding how a vote might align with their ideology and material interests.

The Campaigns for and Against Prop. 118

The context surrounding the election in Colorado on Proposition 118 contrasts sharply with that of Proposition 22. Attitudes were more crystallized, far less money was spent, and polls suggested that voters overwhelmingly supported the policy from the outset. The policy proposal had been on the state's agenda for many years as Democratic lawmakers sought to pass a paid leave bill through the state legislature. Over the course of six years, six different bills failed to clear the hurdles of the legislative process as various inter-party and intra-party battles over the financing of the bill led to stalemate. Believing that the state's heavily Democratic voters were in favor of a publicly financed policy, a group of Democratic State Senators and Representatives decided to pursue a ballot proposition in 2020.

Whereas the Yes on 22 campaign in California relied on paid organizers to get their issue on the ballot (Kerr 2020), the supporters of 118 led a more grassroots effort driven by volunteers from a broad coalition of groups to gather the required signatures (they collected 200,000, or roughly twice the required amount) and mounted a considerable canvassing and phone banking campaign (Oldham 2020). The campaign was also assisted by roughly $7 million in contributions from two Washington, DC-based left-wing non-profit groups, the Sixteen Thirty Fund and the North Fund. Nevertheless, the total amount of spending in the campaign was paltry compared to Proposition 22—a total of $10 million compared to Prop. 22's $224 million. The business groups that contributed to the opposition campaign raised less than $1 million in total. I venture two possible reasons for why the opposition did not spend more given their relative resource advantage. First, reporting suggests that the effort was likely a losing battle according to state-wide polls that signaled broad support for the policy. Second, whereas a loss on Proposition 22 would have entailed a concentrated and costly burden on the app companies in question, the Colorado initiative entailed a diffuse cost distributed in the form of a relatively modest tax on all employers (the policy is funded by a tax that amounts to 0.9–1.2% of employees' wages, the burden of which is split evenly between employers and employees).

In the end, the Proposition passed, 57.7% to 42.3%. To better understand the information environment surrounding Prop. 118, I replicated the content analyses (see Appendix B) of newspaper coverage (Table 4) and paid social media advertising (Table 5). Arguments for the measure tended to center on how the policy would allow

Table 4 Newspaper coverage of arguments and endorsements for/against paid leave law

Pro arguments	Pro supporters	Anti arguments	Anti supporters
Helps people take care of self/family (53%)	Democrats (48%)	Harms businesses (53%)	Business/bus. association (32%)
Benefits women and children (17%)	Liberal group or "progressives" (18%)	Harmful payroll tax (29%)	Republicans (8%)
Good for business (12%)	Governor Polis (D) (15%)	Increase unemployment (25%)	Small business(es) (7%)
Public health (12%)	Unions (7%)	Harms small businesses (14%)	Columnist/editorial (6%)
Everyone will need at some point (11%)	Columnist/editorial (4%)	Insolvent program (12%)	Governor Polis (D) (6%)
Good for small business (9%)	Small Businesses (9%)	Bloated bureaucracy (12%)	Think tank (5%)
Helps poor and marginalized groups (7%)	Advocacy group, no ideology signaled (3%)	Unconstitutional (7%)	Democrats (5%)
Most don't have coverage (7%)	Think tank (3%)		Conservative group (2%)
Increases worker loyalty (5%)	Politician(s), no partisan label (3%)		"Moderates" (2%)

Arguments mentioned in fewer than 5% of articles omitted; All numbers rounded to the nearest percentage point

Table 5 Arguments for and against paid leave in Facebook advertisements

Arguments for	Arguments against
Helps people take care of self/family (79%)	Harmful payroll tax (64%)
Most don't have coverage (53%)	Harms businesses (44%)
Everyone will need at some point (48%)	Insolvent program (32%)
Good for business (21%)	Bloated bureaucracy (32%)
Good for small business (8%)	Harms small business (28%)
Public health (3%)	No constraint on future tax increases (20%)
	Increase unemployment (12%)
	Unconstitutional (8%)
Business testimonial (17%)	Business testimonial (0%)

Coloradans to take care of themselves or family members without having to compromise their employment (53% of newspaper arguments, 79% of ads). Given that the campaign was mounted during the coronavirus pandemic, some of the discourse in the newspapers focused on the public health benefits of the policy (13%), but this argument was virtually absent in paid social media ads. The opposition arguments centered on the tax burden and its effect on businesses, with newspapers giving more coverage to the cost of the tax for business while advertisements favored arguments about taxes on individuals.

Relative to Proposition 22, partisan and ideological cues were much more abundant; the top attributed supporters in newspaper coverage were Democratic candidates/elected officials (48%) and liberal groups (18%). The most cited opponents were business or business associations such as the Colorado Chamber of Commerce (32%) and Republican candidates/elected officials (8%). In a parallel to the winning side of the Proposition 22 campaign which used driver testimonials in their ads, 17% of ads in support of paid leave included a testimonial from a Colorado small business on how the law would help them provide benefits to their employees (no opposition ads contained a testimonial).

Experimental Methods

I randomly assigned a sample of 1,734 respondents in an online panel to a series of interest group cues that vary by type of interest group (business vs. union) and amount of information provided (an endorsement with no information on the policy vs. a cue with arguments). To test the effect of cues on issues with different levels of attitude crystallization, I also randomize the sample into exposure to one of two different policies-a variation on the text (Appendix E) of the California and Massachusetts independent contractor initiative (low attitude crystallization) or Colorado's paid family leave initiative (high attitude crystallization).

My design randomized subjects into one of four conditions listed in Fig. 1. After receiving the initial policy treatment (Fig. 2) and indicating support or opposition, subjects were then randomly assigned to receive an interest group endorsement from

Contractor Condition 1 (Union)	Contractor Condition 2 (Business)
Control wave: Independent contractor control message with just legislation text → Treatment 1: Union cue in with no arguments (opposition) → Treatment 2: Union argument	Control wave: Independent contractor control message with just legislation text → Treatment 1: Business cue with no arguments (support) → Treatment 2: Business argument
Paid Leave Condition 1 (Union)	**Paid Leave Condition 2 (Business)**
Control wave: Paid leave control message with just legislation text → Treatment 1: Union cue in with no arguments (support) → Treatment 2: Union argument	Control wave: Paid leave control message with just legislation text → Treatment 1: Business cue in with no arguments (opposition) → Treatment 2: Business argument

Fig. 1 Summary of conditions and treatments for contractor and paid leave

The following legislation, S.B.1083—2022., is being considered in [STATE]:

Classifies drivers for rideshare and delivery companies who accept requests through digital applications as 'independent contractors,' and not 'employees' or 'agents,' for all purposes under state law. This proposed law would establish alternative minimum compensation and benefits such as healthcare subsidies and vehicle insurance for these 'independent contractors.' Additionally, it prohibits workplace discrimination and requires employers to create policies allowing for rest time.

Do you support this legislation?

Yes, I support this legislation

No, I do not support this legislation

Fig. 2 Control wave

either business groups or labor unions and were asked again if they support the legislation (Fig. 3). This treatment contained no argument or information, merely an indication of an endorsement from one of the two sets of groups. For the independent contractor condition, the labor union endorsement opposes the legislation whereas the business endorsement is in support. For the paid leave condition, the labor union endorsement supports the legislation, whereas the business endorsement opposes it. For example, below is the labor endorsement for the independent contractor condition (see Appendix D for screenshots of all treatments).

Finally, subjects were presented with an elaborated argument for the interest group endorsement they received previously, formatted to appear as a real news article, and were asked to state their support or opposition a third and final time (Fig. 4). The argument treatments were designed to resemble the modal arguments made by interest groups as revealed in the content analysis of newspaper coverage. I include this treatment to discern whether those respondents who may not have enough trust in the interest groups to merely follow their cue will be persuaded by credible arguments.

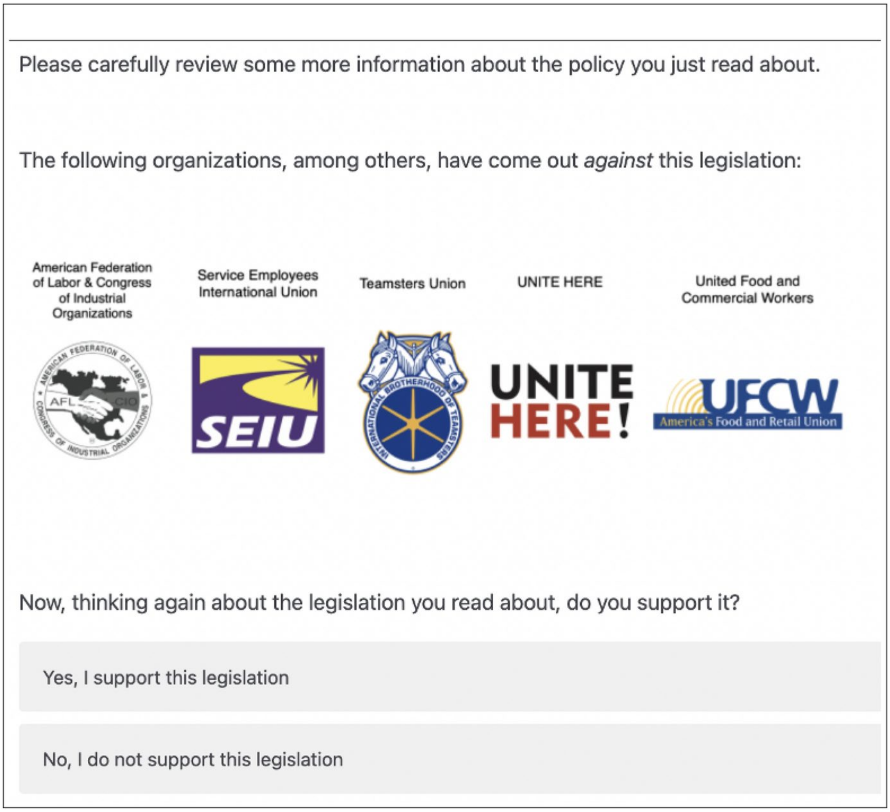

Fig. 3 Labor endorsement cue (independent contractor condition)

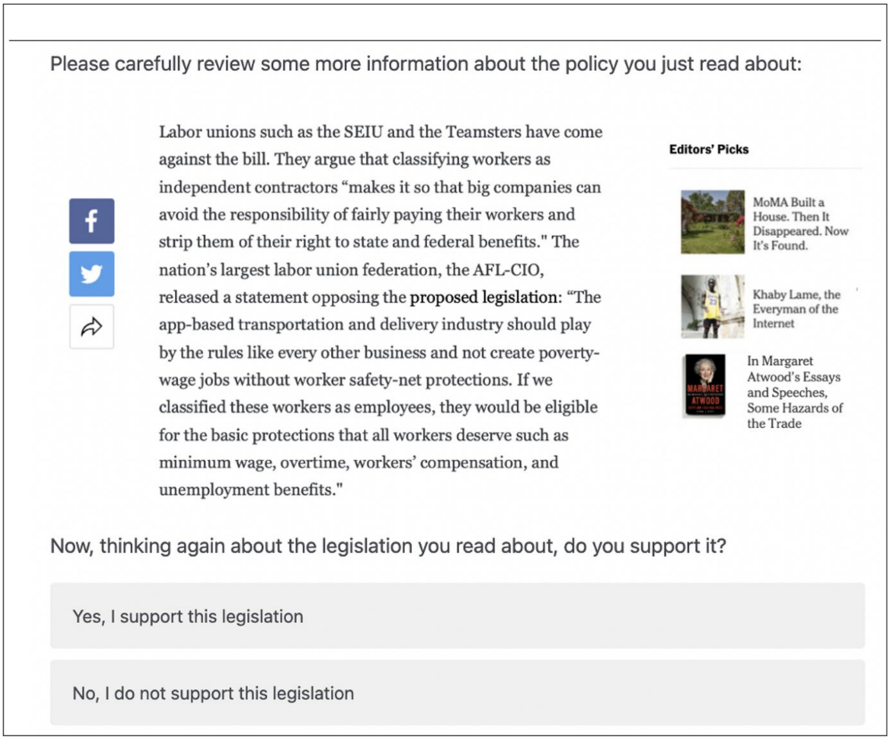

Fig. 4 Labor argument (independent contractor condition)

Hypotheses

I expect the union interest group messages to cue partisan affiliations given the stable alliance of unions with the Democratic party. Thus, the Democrats in the sample should respond positively to a union endorsement:

- **Hypothesis 1a**: Labor endorsements will induce greater support for the progressive position. Respondents who initially support the legislation will be more likely to switch to opposing the legislation.

While it is relatively straightforward to interpret the policy cue of an allied group as a potential proxy for one's own position, I expect that interpreting the cue of an opposed group (e.g., a Democrat receiving a business group cue) requires slightly more inferential sophistication. Moreover, although business lobbying groups are associated with the Republican party and most Americans have unfavorable views of large businesses, most Americans nonetheless have positive views of "small businesses" and tend to support policies that aid them (Gallup 2022). Nevertheless, I believe that Democrats will infer that the business endorsement proxies for the conservative/Republican position and therefore signals progressive/Democratic opposition, thus:

- **Hypothesis 1b**: Business endorsements will induce greater support for the progressive position. Respondents who initially support the legislation will be more likely to switch to opposing the legislation.

For most respondents, I expect that simply receiving a cue without an actual argument will be sufficient for producing a treatment effect in the expected direction; the argument respondents are exposed to in the third wave should, nevertheless, modestly increase the effect size, thus:

- **Hypothesis 2a**: Labor arguments will induce greater support for the progressive position relative to the labor cue without an argument. Respondents who initially support the legislation will be more likely to switch to opposing the legislation.
- **Hypothesis 2b**: Business arguments will induce greater support for the progressive position relative to the business cue without an argument. Respondents who initially support the legislation will be more likely to switch to opposing the legislation.

Given that I expect these treatments to trigger partisan associations, I hypothesize that effects will be most pronounced for strong Democrats who are more likely to associate unions with the Democratic Party and business with the Republican party.

- **Hypothesis 3**: Respondents who more strongly identify with the Democratic party will be more responsive to experimental treatments, consistent with hypotheses 1 and 2.

For the paid leave conditions, I expect the high attitude crystallization to result in higher initial support for the progressive position and smaller effect sizes for the treatments across all groups, thus:

- **Hypothesis 4a**: Respondents in the paid leave condition will have higher initial support for the progressive position compared to those in the independent contractor condition.
- **Hypothesis 4b**: The effect sizes for treatment effects predicted in hypotheses 1–2 will be smaller for respondents in the paid leave condition compared to the independent contractor condition.

For those respondents who use the relevant apps with higher-than-average regularity, I expect that the concerns regarding burdens on the companies and consumers will be persuasive from a rational choice theoretical perspective. Citrin and Sears (1982) found that homeowners were more likely to support a California initiative that cut property taxes than were renters, while those who were among the most economically distressed were more likely to oppose the measure. Tolbert et al. (2019) studied the outcomes of two California initiatives held in 2012 regarding tax increases and found that there was significant intra-party heterogeneity according to economic self-interest. In the present study, app-users may be more wary of the potential for the regulation to increase prices or cause the companies to leave the state altogether. I therefore expect null results for these individuals who are assigned to the union cues, whereas those in the business conditions will follow the cues of the business groups. I also expect higher baseline support for the policy.

- **Hypothesis 5a**: In the independent contractor condition, respondents who use relevant apps with above-average regularity will have higher baseline support for the conservative position.
- **Hypothesis 5b**: Among those in the independent contractor condition who use relevant apps with above-average regularity, there will be significant differences in support across treatment waves for those in the business conditions but not the union cue conditions.

Recent research suggests that Americans who identify as working class express more support for progressive economic policies related to redistribution and the welfare state (Franko and Witko 2023). I hypothesize that this logic extends to employment policies, thus:

- **Hypothesis 6**: Respondents who identify as working or lower class will be more responsive to experimental treatments, consistent with hypotheses 1a-2b.

To assess the average treatment effects, I compared mean policy support (a binary variable coded 1 for support and 0 for opposition) of the proposed ballot measures in the control conditions to mean policy support after having viewed the subsequent interest group cue treatments and conducted McNemar's chi-square tests with Bonferroni corrections.[4] To test for interactions with covariates such as app-use, I modeled policy support using logistic regressions. In addition to the main dependent variable, policy support, I included a series of multiple choice and open-ended questions to probe respondents' thoughts on the proposed legislation including anticipated consequences, hopes, and fears. The 1,734 respondents in the sample were recruited via an online panel fielded by Dynata (formerly SSI) in July 2022. The sample excludes individuals from California and Colorado given that they have already been treated by the campaigns for Proposition 22 and 118. The sample was 61.6% female, 77.4% non-Hispanic white, 11.6% Black, 6.5% Hispanic, and 3% Asian, with a mean age of 52 and a median income of $67,500. I included several manipulation checks and excluded respondents who failed basic pre-treatment attention checks.

[4] All tests are Bonferroni-adjusted for a total of 16 tests. The pre-registration contained a hypothesis pertaining to increased effects for union members, but I do not present it or analyze it here given that any potential tests were underpowered. See Appendix L for more information and for the pre-registration link.

Results

Independent Contractor Policy Condition

Approximately three quarters of the 821 respondents initially support the independent contractor legislation, a surprising finding given that this is the conservative position. I used McNemar's tests to evaluate whether respondents in the independent contractor condition were responsive to each treatment arm. In the union condition (Fig. 5), after receiving the union endorsement treatment, the percentage of supporters went down from 78.7% to 57.7% (χ^2=82.51, p<0.001); this suggests that a substantial number of Democrats proxy the union's position for their own, supporting Hypothesis 1a. After the union argument treatment, support goes down further to 34.1% (χ^2=76.34, p<0.001), supporting Hypothesis 2a.

Some respondents engage in arguably more sophisticated cue-taking by proxying the business position for the position they oppose (the business treatments encourage respondents to *support* the policy). While support goes down from just 81.1% to 79.4% (Fig. 6) after viewing the business endorsement (χ^2=82.51, not significant), support drops to 71.7% after viewing the business argument (χ^2=19.59, p<0.001). Consistent with my intuition, the effect size of switching in the business conditions is nonetheless smaller than the effect size for switching among respondents who received the union cues/arguments (Fig. 5).

Figure 7 (panel a) subsets the respondents who initially support the legislation and displays the percentage of respondents who switch positions post-treatment (percentages are cumulative after each wave). After viewing the union endorsement (no argument), 27.6% switched to the progressive position (p<0.001). When subsequently exposed to the union argument, an additional 30.3% switch (p<0.001) (Fig. 7).

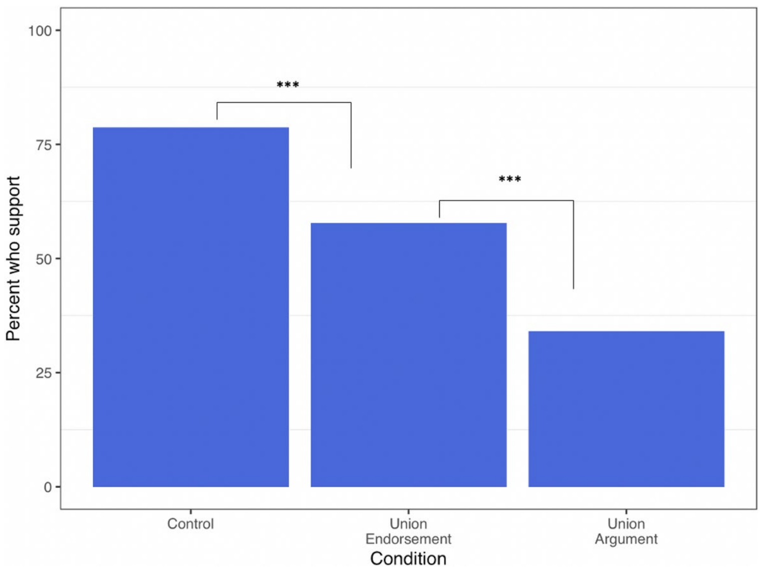

Fig. 5 Effect of union cues on independent contractor policy support

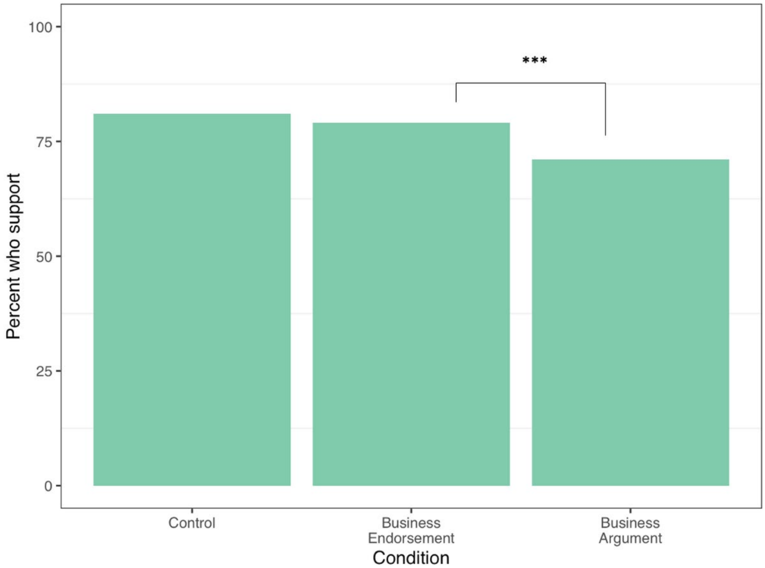

Fig. 6 Effect of business cues on independent contractor policy support

Fig. 7 Percent of respondents who switch positions by treatment condition

For respondents who begin on progressive side of the issue (Fig. 7, panel b) the business endorsement induces 13.3% of respondents to switch (p<0.001) and an additional 3.6% (not significant) switch once they are exposed to the business argument. Although this behavior runs counter to my expectations, it is likely that respondents were simply responding rationally to the only information they have. That is, a legitimate set of groups support the position and as far as they may know, no other groups oppose it. It is noteworthy, however, that the persuasive effect of the union cues/arguments for respondents who initially support the legislation far outweighs the persuasive impact of the business cues for those who initially oppose the legislation.

Paid Leave Policy Condition

Confirming hypothesis 4(a), baseline support for the paid leave policy is very high compared to the independent contractor condition; approximately 90% of respondents support the policy in the control condition (Fig. 8). There is no significant change in support after the union endorsement (88.2%) and the union arguments (88.9%), likely because of ceiling effects.

For respondents randomized into the business condition (Fig. 9), support dropped from 94.9% to 89.7% after the business endorsement (χ^2=20.05, p <0.001) and then to 77.6% after the business argument (χ^2=38.09, p <0.001). This is additional evidence that some people will be persuaded by any argument in the absence of other information. Nevertheless, the effect sizes were much smaller than those illustrated in Fig. 5, supporting hypothesis 4(b), (See Appendix F for treatments effects conditional on responses in the control condition) (Fig. 9).

Open-Ended Responses

I further explored what was motivating respondents' choices by probing open-ended responses in the survey for evidence that they were in fact persuaded by the arguments of the interest groups. These results also function as a manipulation check. To do this, I performed two penalized lasso regressions to compare the words that typify responses in each of the independent contractor conditions (Friedman et al. 2010). Figure 10 displays the most distinctive word stems by condition that were elicited by the question, "What positive or negative effects do you think this legislation is likely to have, and for whom?" with high and low penalties (higher penalties reduce the number of terms in the output of the model).

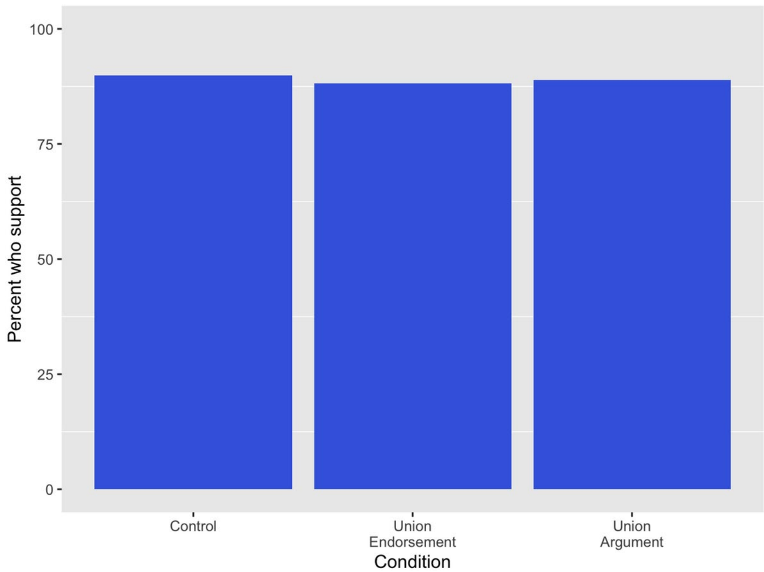

Fig. 8 Effect of union cues on paid leave support

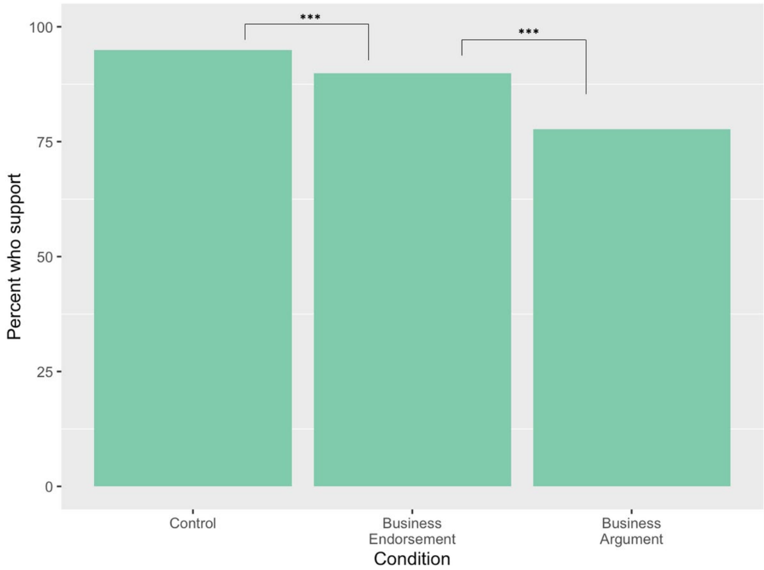

Fig. 9 Effect of business cues on paid leave support

In the union condition, respondents' terms are focused on corporate greed and fairness of pay/benefits, as exemplified by terms such as "corpor," "fair," and "wage." Although there were no explicit partisan cues, some respondents in the union condition explicitly suggested that the legislation would be attractive to Republicans, as in the following response, "[the legislation is] positive for republicans who like to exploit wage earners in favor of corporations." In the business condition, the results suggest that respondents were indeed considering the business groups' rhetoric focused on costs, consumer impact and flexibility of schedules as exemplified by the terms "cost," "service," "consum," and "schedule."

Effects by Frequency of App-Use

App-use was measured on a 5-point scale from "never" (1) to "very often" (5) and the sample mean was 2.28. Comparing the mean initial policy support for those above and below the mean, I find support for my hypothesis (5a) that those with higher app-use have higher baseline support (86.5% vs. 75.9%, $p < 0.0001$). Counter to hypothesis b, I find that those who use the apps more frequently are indeed affected by the union treatments (see Appendix G). Nevertheless, to further investigate the relationship between app-use and the treatments, I modeled the interaction between frequency of app-use (rescaled from 0 to 1) and the treatment conditions (pooling all within-subject observations). The results in table 6 suggest that those who use apps are more likely to support the policy, but they are not more likely to be affected by the treatments (lending support to hypothesis 5a but not 5b). These results are also robust to using an alternative measure of app-use on the survey that asked respondents to state how frequently they use particular apps on a scale from "never" to "seven or more times a week."

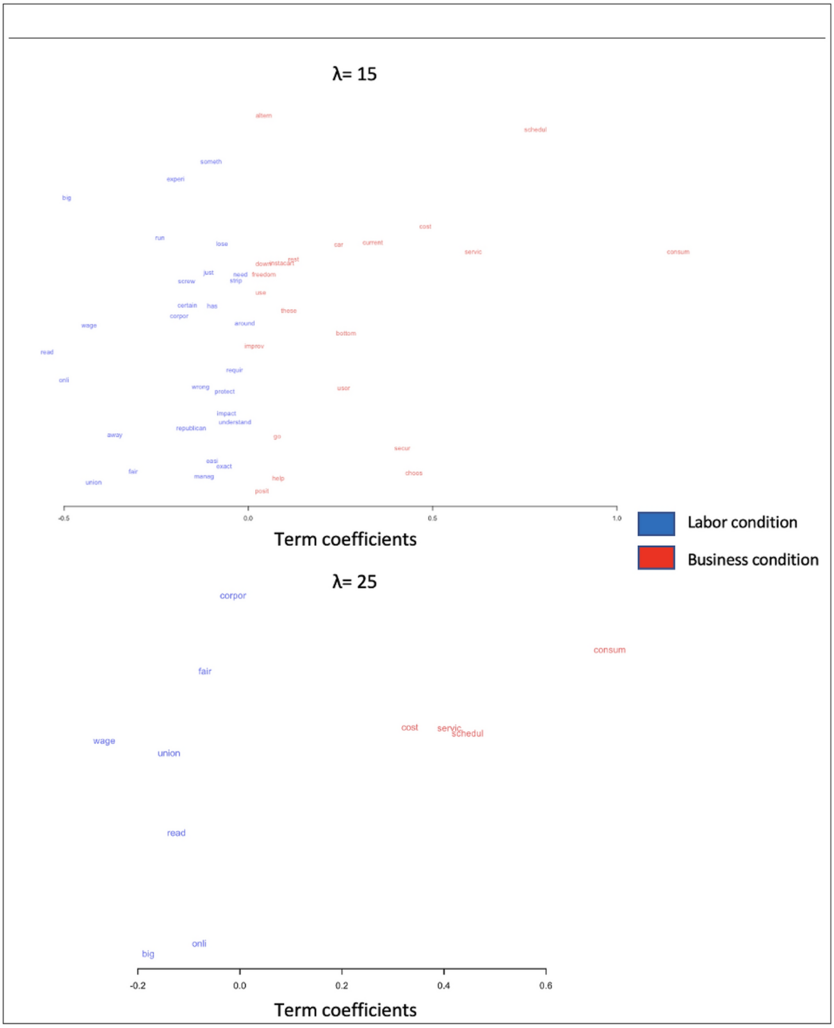

Fig. 10 Open-ended responses by condition

Effects by Strength of Partisanship

I find no support for hypothesis 3 that stronger Democrats are more responsive to the treatment. See Appendix H for the results of a logistic regression that pools the within-subject observations in the independent contractor condition and models policy support as a function of the interaction between strength of Democratic partisan identity and treatment condition. In a post-hoc test, I see no treatment effects that vary according to economic ideology for the independent contractor condition, but a significant interaction effect between business argument and ideology in the paid leave condition (see Appendix I for more details).

Table 6 Contractor policy support and app-use

	Dependent variable:
	Policy support
Union endorsement	−0.938***
	(0.180)
Union argument	−2.216***
	(0.194)
Business endorsement	0.084
	(0.197)
Business argument	−0.300
	(0.185)
App-use	1.099***
	(0.295)
App-use*Union endorsement	−0.515
	(0.425)
App-use*Union argument	0.340
	(0.433)
App-use*Business endorsement	−0.495
	(0.491)
App-use*Business argument	−0.664
	(0.453)
Constant	1.060***
	(0.114)
Observations	2,589
Log Likelihood	−1,463.976
Akaike Inf. Crit.	2,947.952

*p<0.05; **p<0.01; ***p<0.001

Effects by Class

I find no evidence for hypothesis (6), that lower and working-class respondents are more affected by the treatments. See Appendix H for the results of a logistic regression that models policy support as a function of treatment assignment and self-identified class using logistic regression.

Receiving Both Union and Business Cues

While the results overall suggest that interest group cues move support in the hypothesized directions, a limitation of the design is that I cannot probe how respondents might react if they were exposed to messages from both unions and business groups. In a smaller within-subjects study conducted with 153 Democratic respondents recruited from Mturk in July of 2021, I asked respondents to state their support or opposition for independent contractor legislation and then exposed them to both a business argument and a union argument (in random order). I find that final policy support after both treatments is lower than pre-treatment support by 8.3% (χ^2=4.645, p <0.05). See Appendix J for more information on this experiment.

Discussion

In an era of rising inequality, studies of how voters respond to messages on policies regulating jobs and the economy represent a critically important and policy-relevant area of research. I show how the unique information environment surrounding Proposition 22 resulted in an unusual split among Democrats and a consequent win for app-based companies in a heavily Democratic state. The content analysis suggests that this outcome was largely the result of a media environment heavily influenced by companies such as Uber and Lyft. In short, the barrage of paid messages Democrats received from these companies and their allies may have left them at a loss for what the progressive position on this issue was. In the experiments, I show that providing simple and clear informational cues can alter the voting behavior of Democrats to support more progressive policy positions. By contrast, the more conventional information environment surrounding Proposition 118 in Colorado led to a predictable win for the progressive cause. My experiments demonstrated that highly crystallized positive attitudes towards paid leave among Democrats, who outnumber Republicans in the state, left little room for persuasion from either union cues or business cues.

In the control condition of the independent contractor treatment arm, it is reasonable to conjecture that most respondents had little familiarity with the details and consequences of the proposed policy. This helps explain why about 80% of Democrats indicate supporting the conservative-aligned position before being exposed to the interest group cues. On its face, the policy may seem relatively benign—little more than a technical classification for arcane tax purposes. It may even be attractive to a Democrat with progressive values whose eyes are drawn to the sections about new healthcare subsidies and prohibition against workplace discrimination. At the most mundane level, voters on the fence might just be exhibiting a bias towards answering the first option, but scholars have found mixed evidence for order effects in referenda in the past (Visser et al. 2000; Handlin 1994). Moreover, Bowler and Donovan (1998) argue that voters who are confused or uncertain default to voting no or abstaining.

In the context of the campaigns for Proposition 22, voters may also have been uniquely susceptible to the framing of the Uber/Lyft position as one that supports the "independence" of drivers. A long tradition of scholarship in fields ranging from sociology and political theory to personality psychology attests to the significance of the American ideal of self-reliance. Cross-cultural psychologists have documented the pervasiveness of this value orientation in the United States relative to other countries, finding that it is reflected in high scores on scales that measure constructs such as "individualism" (Oyserman et al. 2002) and "self-reliance with competition" (Triandis et al. 1988). Given that classification as an employee does not preclude the ability of companies to allow their drivers to choose their schedules, the Yes on 22 campaign's emphasis on independence was likely a deliberate strategy to appeal to these well-known American values. Framings that claimed, for example, that "drivers want to remain independent," distract from the material consequences by appealing to a notion of independence from state regulatory authority.

The experiments give us causal leverage on whether misconceptions such as these can be counteracted by interest group cues. They also give us insight into the extent to which Democrats view unions as trustworthy providers of information on progressive causes. Unions have long been associated with the Democratic Party and progressive policy positions (Dark 1999), but the half-century long decline in union membership raises questions about the extent to which ordinary Democrats are aware of unions' political identity and trust the information they provide. The experiments suggest that the answer is yes on both counts. Nearly 60% of Democrats who began on the conservative side of the independent contractor position switch to the progressive position after viewing the union endorsement and arguments.

I also find support for my hypotheses that these cue-taking effects are most relevant when the policy is associated with less crystallized attitudes. For issues associated with high-attitude crystallization, policy positions are likely already stable and largely predictable by partisan identity. As we saw in the paid leave conditions of the experiment, most Democrats seem to already understand that the progressive position is to support; over 90% supported it in the control wave. Nevertheless, a quarter of those who were initially opposed to the policy were indeed persuaded to switch positions after receiving both the union endorsement and arguments.

A notable limitation of the design is that respondents never receive an argument without already having received an interest group cue associated with that argument. For this reason, I cannot isolate the effect of an argument without a source cue versus a simple interest group cue. Nevertheless, I suspect that the business arguments would have been even more persuasive without the business interest group cue. In a similar experiment, Boudreau and MacKenzie (2018) found that Democrats who receive a cue from the Republican party opposing a California ballot proposal on tax reform do not decrease their support compared to a control group; neither do they decrease support when a cue is paired with policy information that justifies the Republican position. When the policy information is provided without the partisan cue, however, support went down significantly from 67% to 55%. The authors found no significant differences between support among those who received only an interest group cue and those who received only policy information when the cues and information were aligned with their partisan identity (e.g. for Democrats, a Democratic party cue and information favoring more progressive taxation). While I believe the same pattern may apply to the paid leave condition with regards to the labor union cues/arguments, it is not clear how isolating the cue and argument would heterogeneously affect respondents' views on a less crystallized issue such as independent contractor status.

The results for my hypothesized interactions were mixed. Stronger Democrats, for instance, do not appear more responsive to the treatments. This is curious because I believe the main findings are driven by partisan and ideological associations with the interest group cues. If the associations are primarily ideological and not necessarily partisan, however, my measure of partisan identity is an imperfect proxy for what I seek to understand. For example, it is plausible that Democratic respondents who identify as "not very strong" do so because they find themselves to the left of the party ideologically. Although the post-hoc tests (Appendix I) provide little evidence for a significant interaction between *economic* ideology and the treatments, future research should investigate the extent to which the cue-taking effects I find vary by ideology more generally.

The analyses are also limited by the fact that the sample is conducted with a non-representative, non-random sample of respondents. In particular, the sample is more white, more female, and slightly less wealthy than would be a nationally representative probability sample. While I don't believe this fundamentally undermines the experimental conclusions, it limits the descriptive analyses and my ability to conduct sub-group analyses from the experiment on various populations of interest such as Hispanics and Asians.

Overall, the findings give us new insight into an old debate on the power of economic interests in influencing direct democracy. Building on seminal work by scholars concerned with the power of business interests in American politics (Mills 1956; Schattschneider 1960; Lindblom 1977), many early scholars found that while spending is crucial in defeating initiatives, it is generally ineffective in helping to pass them (Lowenstein 1982; Magleby; Owens and Wade 1986). While just a single data point, the analysis of the influence of the Yes on 22 campaign provides an important counterpoint. Gerber (1999) found support for the notion that economic interests only have an advantage if they have grassroots support. Did the Yes on 22 campaign have a meaningful grassroots connection? On one hand, the app companies ran a highly professionalized campaign that relied on paid signature gatherers, paid media, and paid canvassers. On the other hand, the companies had a large consumer base that may have been sympathetic and amenable to their campaign appeals. While I find no support for the notion that frequent app-users were more responsive to the experimental cues, the treatments are considerably weaker than the messages that many Californians were likely exposed to by the campaign. As Smith (1998) has argued, we should not equate overwhelming public support for an initiative at the polls with the notion that the initiative was a product of the people or its will, and not instead a product of vested special interests.

Conclusion

The results of the analyses suggest that voters by and large respond rationally to the cues available to them. When Democrats find themselves supporting the conservative position on a policy they have little familiarity with (e.g., independent contractor status), a simple cue and argument from a partisan-aligned source such as a labor union encourages a majority to switch to the progressive side of the issue. Moreover, some partisans seem to internalize the logic of the age-old adage, "the enemy of my enemy is my friend," as arguments from business groups appear to backfire on many Democrats. Faced with tough policy questions on relatively new issues, individuals do not just proceed blindly—they infer how their interests align according to the cues they are given. This of course prompts the question, what cues are voters given?

Recent ballot campaigns across the country suggest anything but a balanced exposure to interest group cues. In 2022, across the ten biggest initiatives in terms of financial contributions, one side was outspent by an average ratio of over two to one. In California, the opposition for a measure that would have imposed new regulations on dialysis clinics (including a requirement of having at least one physician on duty) received over $86 million in contributions compared to the just under $8 million spent on behalf of supporters. The ballot measure played out in textbook fashion according to the logic expounded by Wilson (1980); backed by a well-organized, concentrated interest (the dialysis industry), the opposition was able to outspend and defeat the diffuse interests of consumers. In the end, 68.4% of voters rejected the measure. Of the $81 million spent by the opposition, $77 million was donated by just two companies, DaVita Inc. and Fresenius Medical Care.

More insidious than outspending, the strategy of some ballot campaigns has been to blur the ideological lines by seemingly taking traditional conservative positions on issues and presenting them with the trappings of progressive rhetoric. I saw evidence of this as Yes on 22 invoked notions of diversity and democracy to appeal to what was ultimately a pro-business position. An article by the Los Angeles Times revealed that many Democratic voters received a pamphlet endorsing Proposition 22 titled, “Feel the Bern Progressive Voter guide,” a reference to Bernie Sanders who was, in fact, vocally against the proposition. In Illinois in 2022, voters were presented with a ballot issue that, if passed, would enshrine public workers’ rights to form unions in the state constitution and prohibit the passage of right to work laws. While labor unions and workers’ rights groups were virtually unanimous in their support, many opposition ads sought to obfuscate the central issues at play in an apparent attempt to sway unlikely voters. For instance, a Facebook advertisement from the libertarian think tank, Illinois Policy Institute, featured an image of a t-shirt that read “pensions are a promise,” a prominent pro-labor slogan, alongside an entreaty to vote against the ballot issue because of its adverse impacts on the finances of ordinary citizens. Future studies might explore the prevalence of this kind of rhetoric systematically and how the partisan balance of a state influences conservative adoption of progressive rhetoric.

Although issues regarding campaign finance and misinformation pervade, the use of ballot initiatives/referenda to decide the fate of legislation has been steadily increasing for several decades. As for future laws relating to independent contractors, Reuters has reported that Uber, Lyft, InstaCart and DoorDash have set up lobbying groups in Massachusetts, New York, New Jersey, Illinois, Colorado, and Washington to push for laws/initiatives that classify app-based ride-hail and food delivery drivers as independent contractors (Bellon 2021). Putting the responsibility of legislating in the hands of ordinary citizens presents a range of potential problems for democracy in the United States. While initiatives/referenda allow governments to better approximate the concept of direct democracy, they present ample opportunity for manipulation. As I have shown, the quality of voters’ decisions is limited by their information environment, which in turn is highly amenable to the influence of wealthy interests. While I am hesitant to advocate wholesale against the use of direct democracy, a potential solution is a policy that would restrict the types of issues that can be decided in this manner to avoid overly technical issues on which the public has less understanding and less crystallized attitudes.

Appendix A. Description of Proposition 22 Newspaper and Facebook Ad Content Analyses

The newspaper articles were coded by the author and two trained undergraduate research assistants. Articles were identified using the key words, "proposition 22," "prop. 22," "prop 22", "employee status," "independent contractor, ""uber," "lyft," "instacart," "ride-share," and "rideshare." We analyzed each article to identify the arguments made for and against the proposition and the groups/individuals that those arguments were attributed to. The author coded a training set of 25 articles to identify a set of 9 argument types that were then used to code the rest of the data-set which was split evenly between the three coders. We noted the partisan attribution of each politician mentioned and imputed the Democratic attribution for Joe Biden and Kamala Harris if they were not mentioned. References to "Democrats," the Democratic Party, or Democratic officials or candidates were coded as Democrats. A random sample of 1/3 (58 articles) were coded by two coders, yielding an average Jaccard similarity measure of 93.93 across the four variables listed in Table 1: pro-arguments, pro-supporters, anti-arguments, and anti-supporters. Given that coders may differ in the number of arguments identified, I count NA's for a variable as a valid list entry for the purpose of calculating the denominator in the union of sets for the Jaccard similarity index.

The denominator for the arguments in Table 1 is the number of articles that contained at least one argument, regardless of the side it endorsed. Similarly, the denominator for the endorsements in Table 4 is the number of articles that contained at least one endorsement. I also note that the SF Chronicle and San Diego News Tribune editorial boards both endorsed the proposition while the LA times opposed it.

The Facebook/Instagram ads were coded by the author and two trained undergraduate research assistants. Ads were identified by selecting ads that Facebook classified as pertaining to "Issues, Elections, or Politics" using the key words, "proposition 22," "prop. 22," "yes on 22," "no on 22," "prop 22," and "driver AND California." We first analyzed each ad (n=1,917) to identify whether it was in support or opposition. We then randomly sampled one-third (n=633) of all ads and conducted a more thorough coding by reading and/or watching all video, image and text content to identify the arguments made for using the set of arguments coded in our newspaper analysis. We also coded for one additional argument that was made very frequently in Yes On 22 ads–that drivers support it. Finally, we coded for the presence of a testimonial from an alleged driver for a rideshare company. A random sample of 1/4 (160 ads) were coded by two coders, yielding a simple agreement rate of 92% (the unit of analysis for simple agreement measure was the ad; for agreement to be reached, both coders must have full agreement on the exact same set of arguments *and* testimonials).

Appendix B. Description of Proposition 118 Newspaper and Facebook Ad Content Analyses

I coded all newspaper articles that discussed Proposition 118 in 2020 (n=180) from the largest newspapers in Colorado based on in print and online circulation, The Denver Post, The Gazette (Colorado Springs), and Daily Camera (Boulder). Articles were identified using the key words, "Proposition 118," "Prop. 118," "Prop 118" and "Leave." I analyzed each article to identify the arguments made for and against the proposition and the groups/individuals that those arguments were attributed to. References to "Democrats," the Democratic Party, or Democratic officials or candidates were coded as Democrats. References to "progressives" and Non-profit groups described by the newspapers as left-leaning, Democratic, progressive, or in service of minority groups were coded "Liberal groups/progressives." I coded a training set of 25 articles to identify a set of 9 argument types that were then used to code the rest of the data-set. I noted the partisan attribution of each politician mentioned. The denominator for the arguments in Table 4 is the number of articles that contained at least one argument, regardless of the side it endorsed. Similarly, the denominator for the endorsements in Table 4 is the number of articles that contained at least one endorsement.

The Facebook/Instagram ads were identified by selecting ads that Facebook classified as pertaining to "Issues, Elections, or Politics" using the key words, "proposition 118," "prop. 118," "yes on 118," "no on 118" and "prop 118" and paid "leave AND Colorado." I first analyzed each ad (n=253) to identify whether it was in support or opposition. Total impressions for ads in support ranged from 16,690,000 to 18,458,779 and cost $217,800 to $291,172, while ads in opposition had 1,298,000 to 1,577,975 impressions that cost $31,800 to $38,575. I conducted a more thorough content analysis on a random sample of 40% of the ads by coding by reading and/or watching all video, image and text content to identify the arguments made for using the set of arguments coded in our newspaper analysis. Given that there were only 25 ads in opposition, I coded all 25 and then randomly sampled 30% of the remaining articles for a total sample of 98. Finally, I coded for the presence of a testimonial from small business owner in Colorado. I found no partisan endorsements in the sampled ads. Of the total population of 253 ads, 10 ads were paid for by unions and 169 were paid for directly by the official yes on 118 campaign (Colorado Families First). The remaining ads were mostly paid for by small non-profit/advocacy groups that made up the broad coalition of the yes on 118 campaign.

Appendix C. Logistic Regression of Support for Proposition 22 in IGS Sample

See Appendix Table 7.

Table 7 Support for Proposition 22 in IGS sample

	Dependent variable:
	Support
Party ID	−0.646***
	(0.118)
Ideology	−2.780***
	(0.143)
Union member	−0.268***
	(0.074)
African-American	0.275**
	(0.129)
Male	−0.062
	(0.059)
Constant	2.136***
	(0.094)
Observations	5,662
Log Likelihood	−3,375.661
Akaike Inf. Crit.	6,763.322

*p<0.1; **p<0.05; ***p<0.01

Appendix D. Screenshots of treatments

Union endorsement, independent contractor condition

Union endorsement, independent contractor condition

The following organizations, among others, have come out *against* this legislation:

American Federation of Labor & Congress of Industrial Organizations

Service Employees International Union

Teamsters Union

UNITE HERE

United Food and Commercial Workers

Now, thinking again about the legislation you read about, do you support it?

Yes, I support this legislation

No, I do not support this legislation

Union argument, independent contractor condition

Please carefully review some more information about the policy you just read about:

Labor unions such as the SEIU and the Teamsters have come against the bill. They argue that classifying workers as independent contractors "makes it so that big companies can avoid the responsibility of fairly paying their workers and strip them of their right to state and federal benefits." The nation's largest labor union federation, the AFL-CIO, released a statement opposing the **proposed legislation**: "The app-based transportation and delivery industry should play by the rules like every other business and not create poverty-wage jobs without worker safety-net protections. If we classified these workers as employees, they would be eligible for the basic protections that all workers deserve such as minimum wage, overtime, workers' compensation, and unemployment benefits."

Editors' Picks

MoMA Built a House. Then It Disappeared. Now It's Found.

Khaby Lame, the Everyman of the Internet

In Margaret Atwood's Essays and Speeches, Some Hazards of the Trade

Now, thinking again about the legislation you read about, do you support it?

Yes, I support this legislation

No, I do not support this legislation

Business endorsement, independent contractor condition

The following organizations, among others, have come out in *support* of this legislation:

Uber	Lyft	U.S. Chamber of Commerce	Business Roundtable	Instacart
Uber	lyft	THE SPIRIT OF ENTERPRISE U.S. CHAMBER OF COMMERCE	BR	instacart

Now, thinking again about the legislation you read about, do you support it?

Yes, I support this legislation

No, I do not support this legislation

Business argument, independent contractor condition

Please carefully review some more information about the policy you just read about:

Representatives from a wide range of business groups and app-based companies such as Uber, Lyft, Grubhub, and Instacart have come out in support the bill. They argue that classifying these workers as employees would "unfairly increase their operating costs and threaten the freedom of workers to make their own schedules." The nation's largest business association, the U.S. Chamber of Commerce, released a statement supporting the proposed legislation, saying that maintaining independent contractor status is "essential to the business model of these companies and that making these workers traditional employees would lead to layoffs and substantial financial losses for app-based companies. It would also increase costs for consumers who use the apps."

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Now, thinking again about the legislation you read about, do you support it?

Yes, I support this legislation

No, I do not support this legislation

Union endorsement, paid leave condition

The following organizations, among others, have come out in *support* of this legislation:

American Federation of Labor & Congress of Industrial Organizations	Service Employees International Union	Teamsters Union	UNITE HERE	United Food and Commercial Workers

Now, thinking again about the legislation you read about, do you support it?

Yes, I support this legislation

No, I do not support this legislation

Union argument, paid leave condition

Please carefully review some more information about the policy you just read about:

Labor unions such as the SEIU and the Teamsters have come out in support of the bill. Without a state-wide paid leave program, they argue that "companies can avoid the responsibility of giving their workers the time off they need to take care of themselves and their families." The nation's largest labor union federation, the AFL-CIO, released a statement supporting the proposed legislation: "It's time that companies in the state play their part in promoting an equitable and sustainable economy where workers are entitled to basic employment protections. If this law passes, employees would be allowed to take well-deserved time off to care for themselves, their families, and their communities."

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Now, thinking again about the legislation you read about, do you support it?

Yes, I support this legislation

No, I do not support this legislation

Business endorsement, paid leave condition

Please carefully review some more information about the policy you just read about.

The following organizations, among others, have come out *against* this legislation:

Target

United Parcel Service

U.S. Chamber of Commerce

Business Roundtable

Starbucks

Now, thinking again about the legislation you read about, do you support it?

Yes, I support this legislation

No, I do not support this legislation

Business argument, paid leave condition

Please carefully review some more information about the policy you just read about:

Representatives from a wide range of business groups have come out against the bill. They argue that mandating paid leave would "unfairly increase the operating costs of employers who must pay into the program as well as increase taxes for workers." The nation's largest business association, the U.S. Chamber of Commerce, released a statement opposing the proposed legislation, saying that giving employers the freedom to design their own benefits program is "essential to the business model of American companies and that mandating that employers and their workers pay into government leave program would lead to layoffs and substantial financial losses."

Editors' Picks

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Now, thinking again about the legislation you read about, do you support it?

Yes, I support this legislation

No, I do not support this legislation

Appendix E. Ballot Language

California ballot language

The California ballot text read, "EXEMPTS APP-BASED TRANSPORTATION AND DELIVERY COMPANIES FROM PROVIDING EMPLOYEE BENEFITS TO CERTAIN DRIVERS. INITIATIVE STATUTE. Classifies app-based drivers as "independent contractors," instead of "employees," and provides independent-contractor drivers other compensation, unless certain criteria are met. Fiscal Impact: Minor increase in state income taxes paid by rideshare and delivery company drivers and investors." Additional information available to voters included a section on additional benefits for drivers: "This measure prohibits workplace discrimination and requires that companies: (1) develop sexual harassment policies, (2) conduct criminal background checks, and (3) mandate safety training for drivers."

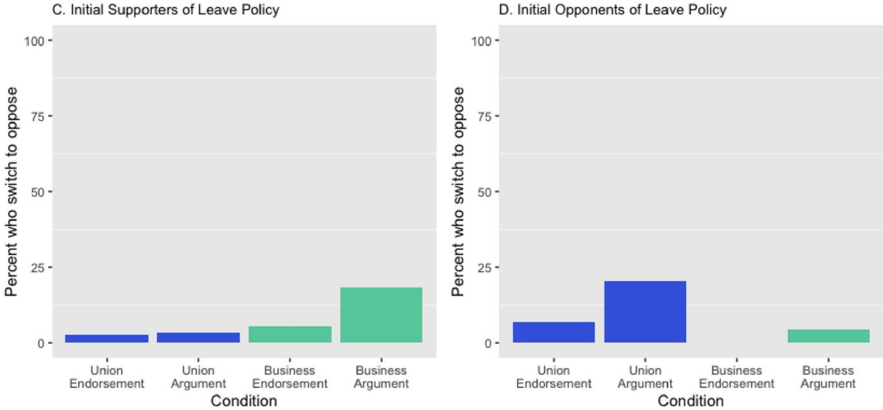
Massachusetts ballot language

The treatment language most closely resembles the proposed summary text of the proposed 2022 Massachusetts initiative, which was removed from the ballot by court order due to violations regarding petitioning requirements: "This proposed law would classify drivers for rideshare and delivery companies who accept requests through digital applications as 'independent contractors,' and not 'employees' or 'agents,' for all purposes under Massachusetts law. This proposed law would establish alternative minimum com- pensation and benefits for these 'independent contractors...The proposed law would prohibit rideshare and delivery companies from terminating the contract of a driver, or refusing to contract with a driver, based on race, sex, sexual orientation, or other protected characteristics unless based upon a bona fide occupational qualification or a safety need. Companies would be required to provide a driver who is terminated with an opportunity to appeal their termination."

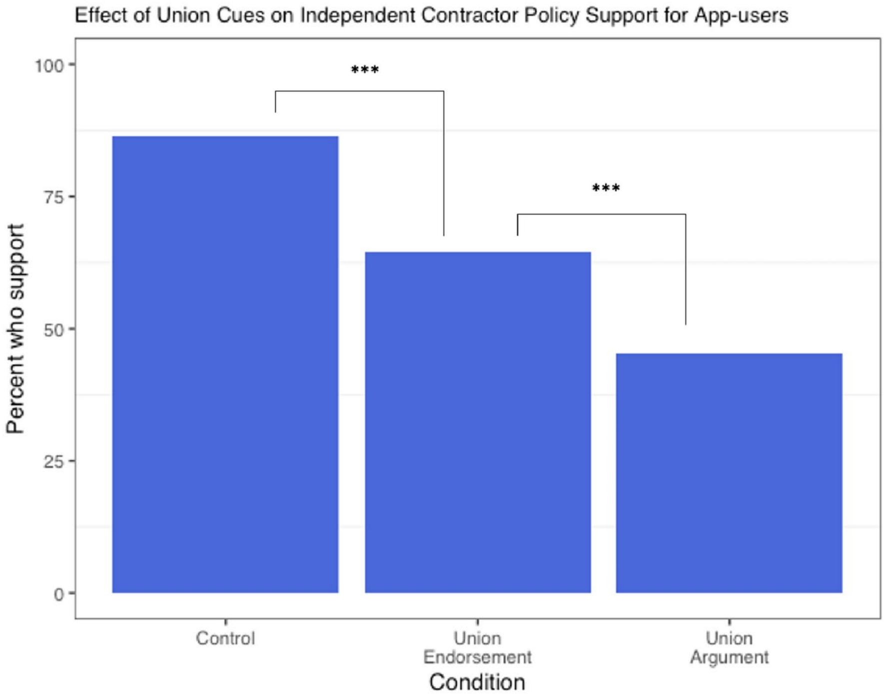
Colorado ballot language

Colorado's Proposition 118, which was approved, created a paid family and medical leave program for all employees, the costs of which are paid by a tax on both employees and employers (50% each). The text read, "Shall there be a change to the Colorado Revised Statutes concerning the creation of a paid family and medical leave program in Colorado, and, in connection therewith, authorizing paid family and medical leave for a covered employee who has a serious health condition, is caring for a new child or for a family member with a serious health condition, or has a need for leave related to a family member's military deployment or for safe leave; establishing a maximum of 12 weeks of family and medical leave, with an additional 4 weeks for pregnancy or childbirth complications, with a cap on the weekly benefit amount; requiring job protection for and prohibiting retaliation against an employee who takes paid family and medical leave; allowing a local government to opt out of the program; permitting employees of such a local government and self-employed individuals to participate in the program; exempting employers who offer an approved private paid family and medical leave plan; to pay for the program, requiring a premium of 0.9% of each employee's wages, up to a cap, through December 31, 2024, and as set thereafter, up to 1.2% of each employee's wages, by the director of the division of family and medical leave insurance; authorizing an employer to deduct up to 50% of the premium amount from an employee's wages and requiring the employer to pay the remainder of the premium, with an exemption for employers with fewer than 10 employees; creating the division of family and medical leave insurance as an enterprise within the department of labor and employment to administer the program; and establishing an enforcement and appeals process for retaliation and denied claims?"

Appendix F. Conditional Treatment Effects in Paid Leave Condition



Appendix G. Effects of Treatments on Frequent App Users



Appendix H. Treatment Effects by Class and Partisan Identity

See Appendix Tables 8 and 9.

Table 8 Contractor Policy Support and Partisan Identity

	Dependent variable:
	Policy Support
Union Endorsement	−0.686
	(0.401)
Union Argument	-1.912^{***}
	(0.396)
Business Endorsement	0.312
	(0.460)
Business Argument	−0.542
	(0.405)
Party ID	−0.156
	(0.297)
Party ID*Union Endorsement	−0.466
	(0.459)
Party ID*Union Argument	−0.158
	(0.457)
Party ID*Business Endorsement	−0.443
	(0.523)
Party ID*Business Argument	0.071
	(0.467)
Constant	1.510^{***}
	(0.258)
Observations	2,601
Log Likelihood	−1,487.141
Akaike Inf. Crit.	2,994.282

$^{*}p<0.05$; $^{**}p<0.01$; $^{***}p<0.001$

Table 9 Contractor Policy Support and Class

	Dependent variable:
	Policy Support
Union Endorsement	−0.583
	(0.317)
Union Argument	−1.613***
	(0.319)
Business Endorsement	−0.070
	(0.362)
Business Argument	−0.070
	(0.345)
Class	0.072
	(0.367)
Class*Union Endorsement	−0.911
	(0.556)
Class*Union Argument	−0.801
	(0.570)
Class*Business Endorsement	0.029
	(0.637)
Class* Business Argument	−0.779
	(0.596)
Constant	1.336***
	(0.208)
Observations	2,583
Log Likelihood	−1,479.121
Akaike Inf. Crit.	2,978.241

*p<0.05; **p<0.01; ***p<0.001

Appendix I. Effects on Independent Contractor Support by Economic Ideology

Unfortunately, I did not ask respondents to self-report their ideology. Alternatively, I can measure economic ideology by scaling three post-treatment questions[5] regarding economic policy and the government's role in the economy (0= very liberal and 1=very conservative). Table 10 reports the results of a post-hoc logistic regression that interacts ideology with the treatment conditions in the independent contractor conditions, finding no significant interaction effects. Regressing economic ideology on pre-treatment support for the policy, I also find no significant correlation (Table 11). For the paid leave condition, however, I find a significant interaction between

[5] The first two questions are taken from the American National Election Studies: Question 1. Some people feel the government in Washington should try to make sure that every person has a job and a good standard of living. Suppose these people are at one end of a scale, at point 1. Others think the government should just let each person get ahead on their own. Suppose these people are at the other end, at point 7. And, of course, some other people have opinions somewhere in between, at points 2, 3, 4, 5, or 6. Where would you place yourself on this scale? Question 2. How much government regulation of business is good for society? A great deal, A lot, A moderate amount, A little. None at all. Question 3. Do you favor or oppose raising the federal minimum wage to $15.00 an hour? Strongly Favor, Somewhat Favor, Somewhat Oppose, Strongly Oppose.

Table 10 Interaction Between Independent Contractor Treatments and Economic Ideology

	Dependent variable:
	Policy Support
Union Endorsement	−1.116***
	(0.260)
Union Argument	−2.228***
	(0.272)
Business Endorsement	−0.148
	(0.298)
Business Argument	−0.600**
	(0.279)
Ideology	0.733
	(0.516)
Ideology*Business Endorsement	0.311
	(0.900)
Ideology*Business Argument	0.379
	(0.839)
Ideology*Union Endorsement	0.209
	(0.777)
Ideology*Union Argument	0.665
	(0.790)
Constant	1.158***
	(0.171)
Observations	2,583
Log Likelihood	−1,476.177
Akaike Inf. Crit.	2,972.354

*p<0.1; **p<0.05; ***p<0.01

Table 11 Pre-treatment Support for Contractor Policy and Economic Ideology

	Dependent variable:
	Policy Support
Ideology	0.733
	(0.516)
Constant	1.158***
	(0.171)
Observations	861
Log Likelihood	−432.311
Akaike Inf. Crit.	868.621

*p<0.1; **p<0.05; ***p<0.01

the business argument treatment and ideology, suggesting that while the business argument generally reduces support for paid leave, its negative effect is attenuated for more conservative respondents (Table 12). I also find that ideology strongly predicts pre-treatment support for the policy, as more liberal respondents are much more likely to support paid leave (Table 13).

Table 12 Interaction Between Paid Leave Treatments and Economic Ideology

	Dependent variable:
	Policy Support
Union Endorsement	−0.088
	(0.567)
Union Argument	0.474
	(0.616)
Business Endorsement	−1.140**
	(0.520)
Business Argument	−2.168***
	(0.442)
Ideology	−5.580***
	(0.829)
Ideology*Union Endorsement	−1.130
	(1.344)
Ideology*Union Argument	−2.331
	(1.434)
Ideology*Business Endorsement	2.141
	(1.302)
Ideology*Business Argument	2.301**
	(1.119)
Constant	4.391***
	(0.352)
Observations	2,592
Log Likelihood	−809.240
Akaike Inf. Crit.	1,638.481

*p<0.1; **p<0.05; ***p<0.01

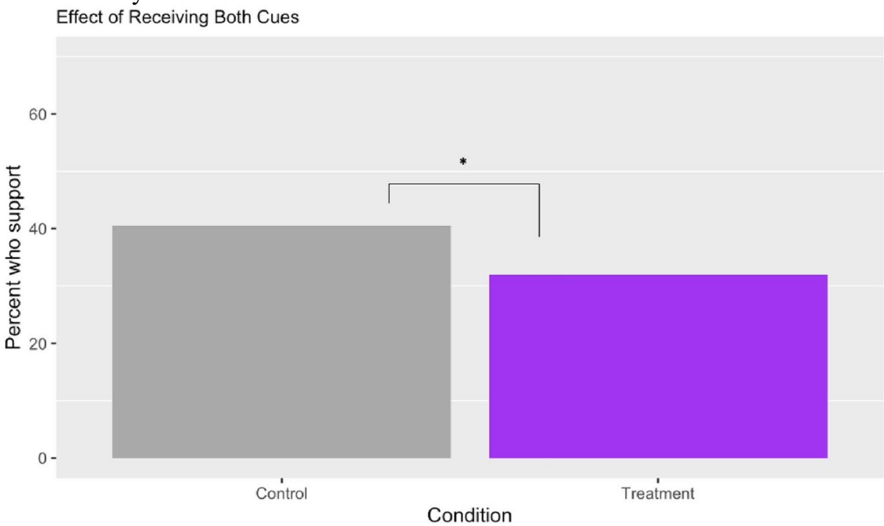
Table 13 Pre-treatment Support for Paid Leave Policy By Economic Ideology

	Dependent variable:
	Policy Support
Ideology	0.733
	(0.516)
Constant	1.158***
	(0.171)
Observations	861
Log Likelihood	−432.311
Akaike Inf. Crit.	868.621

*p<0.1; **p<0.05; ***p<0.01

Appendix J. Effects of Receiving Both Cues

The figure below displays the effects of the treatment, showing that final policy support after both treatments is lower than in the pre-treatment support by 8.3% (χ^2 =4.645, p <0.05). This lends some credibility to the notion that respondents are not merely responding to whatever cue they may have, regardless of who is sending it—they are in fact preferentially responding to the interest groups that most align with their ideologies. It worth noting that levels of initial support in this sample are much lower than in the larger study above (40.5% vs. 79.9%). While I don't have suitable samples to make population estimates of support, I speculate that the difference can be explained by two factors. First, a disproportionate number of the respondents in the Mturk study were themselves gig workers–38.5% identified themselves as independent contractors compared to just 9.5% of those in the larger study. It is plausible that these gig workers may have had strong negative pre-treatment attitudes towards this legislation. Second, the control text for the independent contractor legislation in the full study contained an additional sentence about policies for workplace discrimination and rest time, which may have made the policy appear more progressive and thus more appealing to the Democratic respondents compared to the text in the smaller study.



Appendix K. Heterogeneous Treatment Effects by Region

See Appendix Table 14.

Table 14 Independent Contractor Treatment Effects For Southern Vs. Non-Southern Respondents

	Dependent variable:
	Policy Support
Union Endorsement	−1.144***
	(0.166)
Union Argument	−2.058***
	(0.170)
Business Endorsement	−0.148
	(0.177)
Business Argument	−0.604***
	(0.166)
Southern	−0.080
	(0.175)
Union Endorsement*Southern	0.189
	(0.266)
Union Argument*Southern	0.051
	(0.272)
Business Argument*Southern	0.371
	(0.289)
Business Endorsement*Southern	0.282
	(0.310)
Constant	1.411***
	(0.107)
Observations	2,601
Log Likelihood	−1,488.960
Akaike Inf. Crit.	2,997.920

*p<0.1; **p<0.05; ***p<0.01

Note: Southern states include Alabama, Arkansas, Florida, Georgia, Kentucky, Louisiana, Maryland, Mississippi, North Carolina, Oklahoma, South Carolina, Tennessee, Texas, Virginia, and West Virginia.

Appendix L. Note on Union Hypothesis in Pre-registration

In my preregistration I also hypothesized union members are particularly amenable to the union treatment. A large body of scholarship suggests that source credibility strongly affects whether individuals will be receptive to a persuasive message (Pornpitakpan 2004; Lupia 2013). Union members, therefore, should find the union message particularly persuasive as it is coming from a trusted source. Moreover, union members may also be privier to the economic dimensions and consequences of potential legislation. MacDonald (2021) found that unions significantly increase the political knowledge of their members through workplace discussions and direct information provision. Nevertheless, with union members comprising just 8% of the sample overall and as little as 4% in some of the treatment arms, the study was not sufficiently powered to investigate this hypothesis.

Link to pre-registration and replication files: https://osf.io/qa5cb?view_only=478d63ba1eec4fefb4451c19614dcbe7

Acknowledgements The author would like to thank Tali Mendelberg and Will Schulz for their invaluable feedback.

Funding All funding was obtained from Princeton University's Center for the Study of Democratic Politics and data collection was conducted by Dynata (CSDP Grant 2021-2022).

Data Availability Replication code can be found at https://osf.io/vfp7s/files/osfstorage.

Declarations

Conflict of interest There are no conflicts of interest with regards to this research.

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